

ORDER FOR ATTENDANCE OF A PRISONER IN A CIVIL OR FAMILY MATTER

Canada: Province of British Columbia

Court File No.:

Registry Location:

Application for Attendance of a Prisoner pursuant to:

☐ S. 40 of the Offence Act ☐ S. 2(2) of the Small Claims Act

An application is made for an Order for Attendance of a Prisoner before the Presiding Judge of the Provincial Court on

_____ at: _____
Date of Court Appearance Time

☐ In Person at: _____ and thereafter from day to day as may be necessary.
Court Registry Address

OR

☐ By video at: _____ and thereafter from day to day as may be necessary.
Location of Videoconference Equipment

The Prisoner _____
Name Date of Birth

is in custody at: _____
Institution

☐ Oral application made in court

☐ Written application supported by an Affidavit of Applicant

Affidavit of Applicant

I _____ ,
Name Occupation

make oath and say or solemnly affirm that:

I am the Applicant for the Order described above.

I am informed and believe that:

The Prisoner: _____ is
Name

1. Presently confined in the above institution;
2. A party or witness in the above noted court matter at the above noted location
3. ☐ A witness in the above matter and is therefore required to attend before the court to give evidence OR
☐ A party in the above matter and is required/entitled to attend before the court to (reason for court appearance)

Sworn/affirmed before me

on _____
Date

at _____ , British Columbia
City

Signature of Commissioner for Taking Affidavits in British Columbia

Signature of Applicant

Order

The person having custody of the prisoner is ordered to deliver the prisoner to the Sheriff for court attendance as set out in the application. If required, the prisoner is to be temporarily held in custody at a Provincial Correctional Centre (or police lock-up) until the prisoner is no longer required for court pursuant to this order, whereupon the prisoner is to be returned by the Sheriff to the person having custody.

Dated _____
Date

at _____
City

British Columbia

Judge or Justice of the Peace in and for the Provincial Court